

Landlord Compliance Checklist — New South Wales

The obligations every rental provider must meet under the 2024–2026 reforms.

Correct as at July 2026. General information only, not legal advice. Confirm current requirements with NSW Fair Trading before relying on this checklist alone.

Section 1 — The Standard Form Agreement

- ☐ ☐ **Use the mandatory standard form agreement** — prescribed under Schedule 1 of the Residential Tenancies Regulation 2019, current version from 19 May 2025 (last updated 17 December 2025). Using a non-compliant agreement risks unenforceability at NCAT and penalties from NSW Fair Trading.
- ☐ ☐ **Complete the Schedule 2 condition report** at the start of every tenancy and keep a copy.
- ☐ ☐ **Never charge application, background-check, or agreement-preparation fees to prospective tenants** — banned since 31 October 2024.

Section 2 — Ending a Tenancy

- ☐ ☐ **Know no-grounds evictions are abolished.** Since 19 May 2025, you must have a valid, documented reason to end any tenancy (fixed-term or periodic) — e.g. sale requiring vacant possession, significant renovation/demolition, the landlord or family member moving in, or a genuine tenant breach.
- ☐ ☐ **Provide a Termination Information Statement** with supporting evidence when ending a tenancy — it's an offence to give a termination notice on a ground that isn't genuine, or with false/misleading supporting documents.
- ☐ ☐ **Follow the rent arrears process correctly:** written breach notice on day 14 of arrears, followed by a termination notice if unpaid, then an NCAT application for possession if the breach isn't remedied.
- ☐ ☐ **Provide additional documentation for renovation-based terminations** — required since 20 June 2025, beyond simply stating an intention to renovate.
- ☐ ☐ **Complete the mandatory end-of-tenancy survey** in Rental Bonds Online within 14 days of a bond claim, identifying who ended the tenancy and why — non-compliance can result in a penalty notice from NSW Fair Trading.

Section 3 — Rent and Pets

- ☐ ☐ **Increase rent no more than once every 12 months**, with at least **60 days' written notice**.
- ☐ ☐ **Respond to pet requests within 21 days** (via the Fair Trading Pet Application Form) or the request is automatically approved — you can only refuse for reasons from the prescribed list, not a blanket policy.
- ☐ ☐ **Never charge extra rent or bond because a tenant has a pet.**
- ☐ ☐ **Offer Centrepay as a payment option for eligible tenants** — mandatory since 2 March 2026.

Section 4 — Ongoing Obligations

- ☐ ☐ **Ensure smoke alarms are installed and maintained in working order** — confirm current specific testing/replacement requirements with NSW Fair Trading, as these are periodically updated.
- ☐ ☐ **Respond to repair requests promptly**, particularly anything affecting habitability — unresolved requests can escalate to NCAT.
- ☐ ☐ **Lodge and manage bonds only through Rental Bonds Online** — landlords/agents don't hold bond funds directly.
- ☐ ☐ **Keep records of all tenancy communications** — correspondence, notices, and evidence supporting any termination ground.

Section 5 — Penalties for Non-Compliance

- ☐ ☐ **Understand NCAT's powers** — the Tribunal can make binding orders on possession, compensation, and bond disputes, and can be applied to by either party.
- ☐ ☐ **Know NSW Fair Trading can issue penalty notices** for specific breaches, including failure to complete the mandatory end-of-tenancy survey.
- ☐ ☐ **Understand it's an offence to issue a termination notice on a non-genuine ground** or with false supporting documents — this carries real legal exposure beyond a simple compliance slip-up.

Quick Reference — NSW Landlord Compliance Calendar

OBLIGATION	DETAIL
Standard form agreement	Mandatory, current version from 19 May 2025
No-grounds evictions	Abolished since 19 May 2025
Rent increase	Once per 12 months, 60 days' notice
Pet request response	21 days, or automatically approved
End-of-tenancy survey	Within 14 days of bond claim (since 1 July 2025)
Centrepay	Mandatory offering since 2 March 2026

